

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 27, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV01708

REXEL USA, INC. v. McGRATH

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the Court will sign the proposed order submitted by counsel. Once the order is signed, counsel is directed to serve copies of the signed order, with the next hearing date, on McGrath Electric, Inc. and separately upon Eric McGrath and Adell McGrath as individual defendants, also transmitting the order to every known McGrath email address, with the service proof evidencing same, e-filed into the court docket.

No. 25CV02148

GARCIA v. LITTLE CAESAR’S OF SANTA CRUZ INC.

(UNOPPOSED) PLAINTIFF’S MOTION FOR ORDER GRANTING RELIEF FROM WAIVER OF JURY TRIAL

The unopposed motion is granted.

“If a party has waived the right to a jury trial under section 631, subdivision (g) of that statute gives the trial court discretion to grant relief from such waiver: ‘The court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury.’ ‘In exercising its discretion, the trial court may consider delay in rescheduling jury trial, lack of funds, timeliness of the request and prejudice to the

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litigants.’ [Citation.] Prejudice to the court or its calendar are also relevant considerations. [Citations.] [¶] A trial court’s discretionary decision to grant or deny relief under section 631, subdivision (g) will not be disturbed absent an abuse of discretion. [Citation.]”

(*TriCoast Builder, Inc. v. Fonnegra* (2022) 74 Cal.App.5th 239, 245.)

Despite proper service, defendant did not file any opposition establishing it would be prejudiced if relief were granted. Lack of an opposition may also be considered a concession that the motion is meritorious. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Therefore, the court grants the motion and plaintiff is ordered to post jury fees no later than September 4, 2026.

No. 23CV02345

SANTA CRUZ COUNTY REGIONAL TRANSPORTATION COMMISSION v. TROUT GULCH, et al.

BETTY 41st, LLC’S MOTION TO ENFORCE DISCOVERY ORDER AND FOR MONETARY AND ISSUE SANCTIONS

Betty 41st, LLC previously brought a motion to compel further production of certain document production requests: nos. 27, 28, and 34. (MPA at p. 9.) Originally, the RTC responded to the document production request with objections and an invitation to meet and confer regarding “the scope” of the request. The RTC also represented that it was “in the process of performing a diligent search and reasonable inquiry in an effort to comply” with the request, and that it would “produce any potentially responsive documents.” In a supplemental response, the RTC indicated that it would produce a privilege log, which it did produce on June 2, 2026.

The court’s June 15, 2026 order relating to the motion to compel stated, in part: “It is not clear from the moving papers, the opposition and reply what outstanding discovery issues remain. RTC states that it has complied with the requests and the motion is moot. . . . If RTC has produced all responsive documents, it needs to also serve (if it has not done so) a verified **statement of compliance** pursuant to Code of Civil Procedure section 2031.210, subdivision (a).” (Emphasis added.)

RTC served discovery verifications on June 18, 2026, executed by RTC’s executive director but did not otherwise further respond to the document production requests. However, RTC did not serve a statement of compliance, which would have included one of the following

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three options: an agreement to comply, a representation of inability to comply, or an objection. (See Code of Civ. Proc., § 2031.210, subd. (a).)

Betty 41st, LLC contends that the RTC's responses do not conform to Code of Civil Procedure sections 2031.210 - 2031.230. Betty 41st, LLC¹ seeks mandatory monetary sanctions as well as issue sanctions and for the court to rule on this motion despite the statutory discovery motion cut-off because of the impending trial date.

Here, RTC agreed to comply after raising objections. However, it never provided a statement of compliance -- i.e., a statement that RTC (1) is complying and (2) that the documents or things demanded are in the responding party's possession, custody or control (except as objections may apply). If RTC cannot comply, it is required to state that and indicate that a diligent and reasonable inquiry was made to locate the item demanded and the reason(s) why compliance is not an option. (Code of Civ. Proc. § 2031.230.)

RTC is to serve a statement of compliance in accordance with the above statutory requirements. The court declines to impose issue and monetary sanctions at this time.

No. 26CV00633

SC LABORATORIES CALIFORNIA, LLC v. SC BLOOM NETWORK, INC.

DEFENDANT SC BLOOM'S MOTION TO SET ASIDE DEFAULT

The motion is denied; defendant did not establish mistake, inadvertence, or excusable neglect.

I. BACKGROUND AND MOTION

Defendant SC Bloom Network, Inc. ("defendant" or "SC Bloom") brings this motion to set aside its default pursuant to Code of Civil Procedure section 473, subdivision (b) – mistake, inadvertence, or excusable neglect.

- February 23, 2026, plaintiff ("SC Labs") filed this case, alleging breach of contract and common counts, seeking damages in the amount of \$87,102.07.
- February 26, 2026, defendant was served with the complaint via substituted service. The documents were left with a person at the business at least 18 years of age and then the complaint was mailed to 300 Pioneer Street, Santa Cruz.
- April 17, 2026, default was entered against SC Bloom.
- June 24, 2026, the Court denied SC Bloom's ex parte application to set aside its default.

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- August 5, 2026, SC Bloom filed this motion to set aside default and for leave to file a compulsory cross-complaint.

The motion is accompanied by a declaration from defendant's counsel as well as from William Sump, defendant's CEO. Mr. Sump asserts the initially believed service may have been defective and from February 24-26, 2026 he was emailing with SC Labs, requesting reconciliation of invoices and related information to support its claim of the amount owed. Mr. Sump contends he was actively communicating with SC Labs, and no one warned him that SC Bloom's default was going to be taken. (Decl. of Sump at ¶ 8.)

In opposition, plaintiff asserts that "the timeline in this matter directly controverts Defendant's claims of diligence. Defendant acted unreasonably by repeatedly ignoring the Complaint, the Summons, and the two request for entry of default that were mailed to Defendant." (Opp. at p. 2.) Plaintiff states that Mr. Sump is an experienced litigant who filed a motion to set aside a default in 2022 in another matter in this court. Plaintiff argues that defendant was not in "extensive email correspondence" with him – only four emails on February 24 and 26, 2026 with no discussion of the litigation. (Opp. at p. 8-9.) Plaintiff emphasizes that SC Bloom has been involved in at least 10 litigation matters in Santa Cruz and Santa Clara counties, not including this matter, and two of the cases involved defaults, and so SC Bloom cannot argue it was ignorant of defaults and the potential impact of a default judgment. (Opp at p. 11.)

II. LEGAL STANDARDS AND DISCUSSION

The moving party bears the burden of proving they are entitled to relief under section Code of Civil Procedure section 473(b). The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code of Civ. Proc. § 473, subd. (b).) Section 473(b) provides the court with discretion to grant relief based upon a showing of "mistake, inadvertence, surprise, or excusable neglect." The party moving for relief must show specific facts demonstrating that one of these conditions was met. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 981, 989.)

SC Bloom seeks relief based upon excusable neglect, citing its unrepresented status while seeking counsel, "in combination with its ongoing good-faith efforts to obtain documentation of the asserted debt, SC Labs' refusal to provide such documentation despite SC Bloom's reasonable requests, and good-faith efforts to negotiate settlement" (Mtn. at p. 7.)

"To entitle [a party] to relief **the acts which brought about the default** must have been the acts of a reasonably prudent person under the same circumstances." (*Jackson v. Bank of Am.*

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(1983) 141 Cal.App.3d 55, 58.) (Emphasis added.) SC Bloom does not assert it was unaware of the lawsuit; Mr. Sump's declaration shows he was aware of the summons and complaint on February 26, 2026. (Decl. of Sump at ex. A.) SC Bloom has not provided any evidence that default was taken because of illness or inability to understand the summons and complaint. SC Bloom argues that its status as a self-represented litigant seeking legal representation should be factored into the Court's decision to grant relief. "During this time period I engaged in written and telephone correspondence with a law firm that I spoke with about representing SC Bloom in this matter. The firm informed me that one of the attorneys representing SC Labs had previously been an employee of theirs. This, among other facts, gave me concerns about retaining that firm. The firm subsequently notified me on April 28, 2026 that they could not represent me." (Decl. of Sump at ¶ 10.)

Proceeding in litigation without counsel is not excusable neglect. (*Burnete v. La Cases Dana Apartments* (2007) 148 Cal.App.4th 1262, 1264.) "[W]hen a litigant accepts the risks of proceeding without counsel, he or she is stuck with the outcome, and has no greater opportunity to cast off an unfavorable judgment than he or she would if represented by counsel." (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1413.)

Further, Mr. Sump does not allege he asked for an extension to respond to the complaint on behalf of SC Bloom while the parties discussed settlement. Mr. Sump contends that part of the reason for the failure to respond to the complaint was because SC Bloom did not concede the amount plaintiff's claim it owes and was seeking to "obtain from SC Labs the documentation necessary to verify the amounts they claim SC Bloom owes and while I was engaged in good-faith attempts to negotiate a resolution." (Decl. of Sump at ¶ 8.) Negotiating settlement and/or disputing the amounts owed are not reasonable excuses for failing to respond to the complaint.

Defendant relies upon *Ebersol v. Cowan* (1983) 35 Cal.3d 427 which involved relief from timely filing a government claim. The facts of *Ebersol* are quite different than the ones before this Court. The plaintiff in *Ebersol* went to an attorney the day she was injured and continued to seek legal advice and assistance despite being turned down by the first attorney and spoke with nine attorneys who told her she did not have a claim. (*Ebersol, supra*, 35 Cal.3d at p. 437.) Additionally, the California Supreme Court noted that the plaintiff was in and out of the hospital because of the hand injury she had sustained. Finally, *Ebersol* involved the failure to file a timely government claim, which creates an additional layer of legal complexity that a layperson may not have reasonably have known. Mr. Sump, who has been involved in a significant amount of litigation in the past, knew of this suit, spoke with one attorney who declined to take his case, and did not request an extension to respond to the complaint. The motion is denied.

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PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE

1a-1d: The Court declines to take notice of these documents which are already part of the file in this case (case no. 26CV00633).

2a-2g: Documents in *KC DBWI, LLC v. SC Bloom Network, Inc.* (Superior Court of California, County of Santa Cruz case no. 22CV01122): Granted.

3a-3b: Documents in *Cavalry SPV I, LLC As Assignee of Citibank, N.A. v. William Sump* (Superior Court of California, County of Santa Cruz case no. 23CV01434): Granted.

4a-4b: Documents in *William Sump, et al. v. Nathaniel Ready, et al* (Superior Court of California, County of Santa Cruz case no. 18CV03384): Granted.

5a-5b: Documents in *Bay Federal Credit Union v. William Sump, II* (Superior Court of California, County of Santa Cruz case no. 20CV00211): Granted.

6a-6b: Documents in *William Sump et al v. Nathaniel Ready et al* (Superior Court of California, County of Santa Clara case no. 20CV366437): Granted.

7a-7c: Documents in *SC Bloom Network, Inc. v. Justin Hudak* (Superior Court of California, County off Santa Cruz case no. 22CV01441): Granted.

8a-8b: Documents in *William Sump v. Benajmin Chapin* (Superior Court of California, County of Santa Cruz case no. 23CV00443): Granted.

9a-9c: Documents in *Seven Zero Seven LLC v. LSC Bloom Network, Inc.* (Superior Court of California, County of Santa Clara case no. 24CV432846): Granted.

10a-10b: Documents in *SC Bloom Network, Inc. v. Old Republic Title* (Superior Court of California, County of Santa Cruz case no. 25CV010890): Granted.

11a-11b: Documents in *Jeanne Carhart v. SC Bloom Network, Inc.* (Superior Court of California, County of Santa Cruz case no. 26CV02325): Granted.

No. 26CV01339

FERGUSON v. WALGREEN CO.

DEFENDANT'S DEMURRER

The demurrer is overruled.

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I. BACKGROUND

On April 20, 2026, plaintiff Jason Ferguson sued Walgreen Co. for unfair competition (all three prongs – unlawful, fraudulent and unfair), false advertising, and violation of the Consumer Legal Remedies Act related to defendant Walgreen Co.’s sale of “Men’s Testosterone Complex Dietary Supplement.” Plaintiff contends the product is ineffective and the product’s claims are prohibited by the federal Food, Drug, and Cosmetic Act (“FDCA”) and subjects defendant to unapproved new drug liabilities and penalties.

Defendant demurs to all five causes of action on the grounds plaintiff has failed to allege facts sufficient to constitute any cause of action.

II. LEGAL STANDARDS

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

III. DISCUSSION

A. Unfair competition (Bus. & Prof. Code § 17200)

The purpose of the UCL “is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services.” (*Drum v. San Fernando Valley Bar Assn.* (2010) 182 Cal.App.4th 247, 252 citing *Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 949.) Business and Professions Code section 17200 provides: “[a]s used in this chapter, unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by Chapter 1 (commencing with Section 17500) of Part 3 of Division 7 of the Business and Professions Code.” (*Progressive West Ins. Co. v. Superior Court* (2005) 135 Cal.App.4th 263, 284.) Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition -- acts or

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practices which are unlawful, unfair, or fraudulent. (*Adhav v. Midway Rent a Car, Inc.* (2019) 37 Cal.App.5th 954, 970.)

1. Unfair, fraudulent, or unlawful practices

“The balancing test required by the unfair business practice prong of section 17200 is fact intensive and is not conducive to resolution at the demurrer stage. ‘[U]nfairness’ is an equitable concept that cannot be mechanistically determined under the relatively rigid legal rules applicable to the sustaining or overruling of a demurrer.” (*Progressive West Ins. Co. v. Superior Court* (2005) 135 Cal.App.4th 263, 287 citing *Schnall v. Hertz Corp.* (2000) 78 Cal.App.4th 1144, 1167.)

“A fraudulent business practice under section 17200 ‘is not based upon proof of the common law tort of deceit or deception, but is instead premised on whether the public is likely to be deceived.’” (*Progressive West Ins. Co. v. Superior Court* (2005) 135 Cal.App.4th 263, 284.) “In order to state a cause of action under the fraud prong of [section 17200] a plaintiff need not show that he or others were actually deceived or confused by the conduct or business practice in question. ‘The ‘fraud’ prong of [section 17200] is unlike common law fraud or deception. A violation can be shown even if no one was actually deceived, relied upon the fraudulent practice, or sustained any damage. Instead, it is only necessary to show that members of the public are likely to be deceived.’ [Citations.]” (*Ibid.*)

Unlawful practices require an allegation of a violation of a law. (*Lazar v. Hertz Corp.* (1999) 69 Cal.App.4th 1494, 1505.) Under the “unlawful” prong of the UCL, a plaintiff may “borrow” from other laws. “‘Unlawful business activity’ proscribed under section 17200 includes ‘anything that can properly be called a business practice and that at the same time is forbidden by law.’ [Citation.] As the People observe in their brief on the merits, ‘[i]n essence, an action based on Business and Professions Code section 17200 to redress an unlawful business practice ‘borrows’ violations of other laws and treats these violations, when committed pursuant to business activity, as unlawful practices independently actionable under section 17200 et seq. and subject to the distinct remedies provided thereunder.” (*Farmers Ins. Exchange v. Superior Court* (1992) 2 Cal.4th 377, 383.)

At the pleading stage, plaintiff’s allegations are sufficient. The complaint alleges defendant’s misrepresentations on the product’s packaging and advertising, its unfair practices in marketing a deceptive product, and its unlawful acts in marketing, selling and distributing the product in violation of several Health & Safety Codes. (Complaint ¶¶ 42-55, 66-68.)

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Further, the Court finds that plaintiff's UCL claims are not preempted as defendants argue. State law is not preempted when it parallels federal law. (*Coleman v. Medtronic, Inc.* (2014) 223 Cal.App.4th 413, 425 (“[I]f a plaintiff's state law claims are based on requirements that parallel federal law, they are not expressly preempted.”); *Bates v. Dow Agrosciences L.L.C.*, (2005) 544 U.S. 431, 442 (“Nothing [...] would prevent a state from making the violation of a federal labeling or packaging requirement a state offense, thereby imposing its own sanction on pesticide manufacturers who violate federal law.”). States may allow a private cause of action in areas regulated by the FDCA where the state's law imposes the same requirements as the FDCA or is otherwise excluded from preemption. (*Bates*, 544 U.S. at 440-42.) Plaintiff's claims under California laws impose identical requirements to those of the FDCA. (See Cal. Health & Safety Code §§ 110110-110111, 110115; Complaint ¶¶ 3-9, 35-41, 68, 77-87.)

B. False advertising (Bus. & Prof. Code § 17500)

The necessary elements for false advertising are: (1) the defendant intended to dispose of real or personal property or perform services; and (2) defendant publicly disseminated advertising containing an untrue or misleading statement which they knew or should have known was untrue or misleading; and (3) the false statement concerned the real or personal property or services or their disposition or performance. (Business and Professions Code § 17500.)

To state a claim based on false advertising or promotional practices, it is necessary only to show that members of the public are likely to be deceived. This is determined by considering a reasonable consumer who is neither the most vigilant and suspicious of advertising claims nor the most unwary and unsophisticated, but instead is “the ordinary consumer within the target population.” (*Lavie v. Procter & Gamble Co.* (2003) 105 Cal.App.4th 496, 509-510.) “ ‘Likely to deceive’ implies more than a mere possibility that the advertisement might conceivably be misunderstood by some few consumers viewing it in an unreasonable manner. Rather, the phrase indicates that the ad is such that it is probable that a significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled.” (*Id.* at 508.) The question whether consumers are likely to be deceived is a question of fact that can be decided on a demurrer only if the facts alleged in the complaint, and facts judicially noticed, compel the conclusion as a matter of law that consumers are not likely to be deceived. (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 226-227.)

Generally, both parties' arguments go to the merits of the underlying claims. They both argue the merits of the studies cited in the complaint but the Court need not rely on those studies in deciding if plaintiff has met his pleading standards. The complaint alleges that the product's claims are misleading, fail to deliver the advertised benefits, and consumers risk purchasing the product that will not effectively treat their condition or may endanger their health. (Complaint ¶¶ 45-55, 62.) Therefore, the demurrer to the fourth cause of action is overruled.

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C. Violation of the Consumer Legal Remedies Act (Civ. Code § 1750)

The California Consumers Legal Remedies Act (“CLRA”), Civil Code section 1750 et seq., protects consumers from a broad range of unfair or deceptive business practices. One of those practices is “[m]aking false or misleading statements of fact concerning . . . [the] existence of, or amounts of, price reductions.” (Civ. Code Proc. § 1770.) The necessary elements of a CLRA cause of action are: (1) a consumer; (2) who suffers any damage; (3) because of the use or employment by any person of a method, act, or practice declared to be unlawful by Civil Code section 1770. (Civ. Code, §1780, subd. (a); *Buckland v. Threshold Ent., Ltd.* (2007) 155 Cal.App.4th 798, 809, 811 [“actual reliance is an element of a CLRA claim sounding in fraud”], overruled in other part by *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 326-327.)

“Our Supreme Court has interpreted the CLRA’s ‘any damage’ requirement broadly, concluding that the ‘phrase . . . is not synonymous with ‘actual damages,’ which generally refers to pecuniary damages.’ Rather, the consumer must merely ‘experience some kind of damage,’ or ‘some type of increased costs’ as a result of the unlawful practice.” (*Hansen v. Newegg.com Americas, Inc.* (2018) 25 Cal.App.5th 714, 724 [citations omitted].)

Here, the complaint alleges that plaintiff (the consumer) suffered damage (economic injury) because of the use or employment of defendant’s acts of representing the product had characteristics, uses or benefits it did not have and represented that the product met a standard it did not. (Complaint ¶¶ 42-55, 77-87.) Further, the Court similarly finds that plaintiff’s CLRA claims are not preempted (see ante). The demurrer to the fifth cause of action is overruled.

D. Defendant’s request for judicial notice

The Court denies defendant’s requests Exhibits A through E (medical literature) on the grounds they constitute facts that are reasonably subject to dispute and are not capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid. Code § 452, subd. (h); *Sanchez v. Kern Emergency Medical Transportation Corp.* (2017) 8 Cal.App.5th 146, 154.) While these medical studies are cited in the complaint, they are also not material to the Court’s ruling.